

LEGAL NOTICE

(Under Section 138, Negotiable Instruments Act 1881)

Date: 07th April 2024

To,

Mr. Suresh Patel

Director, Patel Enterprises Pvt. Ltd.

42, Industrial Area, Phase 2,

Hyderabad, Telangana - 500081

Subject: Legal Notice for Dishonour of Cheque

Dear Mr. Suresh Patel,

I, Rajesh Mehta, am sending you this legal notice on behalf of my client Mr. Vikram Singh, residing at 15, Banjara Hills, Hyderabad, Telangana - 500034.

FACTS OF THE CASE:

1. My client had provided a loan of Rs. 5,00,000 (Five Lakhs Rupees Only) to your company on 15th January 2024 as per the loan agreement.
2. In repayment of the said loan, you issued a cheque bearing No. 004521, dated 01st March 2024, drawn on HDFC Bank, Hyderabad Branch, for an amount of Rs. 5,00,000.
3. When my client presented the said cheque for payment on 05th March 2024, the same was returned unpaid by the bank with the remark **"INSUFFICIENT FUNDS"**.
4. The dishonour of cheque is a criminal offence under Section 138 of the Negotiable Instruments Act, 1881, punishable with imprisonment up to 2 years or fine twice the cheque amount or both.

DEMAND:

You are hereby called upon to pay the cheque amount of Rs. 5,00,000 within 15 days of receiving this notice. Failing which my client will initiate criminal and civil proceedings against you without further notice.

LEGAL CONSEQUENCES:

If you fail to make the payment within the stipulated time period, my client shall be constrained to:

1. File a criminal complaint under Section 138 of the Negotiable Instruments Act 1881 before the Metropolitan Magistrate Court, Hyderabad.
2. File a civil suit for recovery of the loan amount along with 18% interest per annum.
3. Report the matter to the Credit Information Bureau which will affect your credit rating and future banking facilities.

Please treat this as a final opportunity to settle this matter amicably and avoid legal proceedings.

Yours faithfully,

Rajesh Mehta

Advocate

Bar Council No. AP/2010/1234

Chamber No. 45, District Court Complex,

Hyderabad, Telangana - 500001

Phone: 9848012345

Copy to:

1. Client Mr. Vikram Singh for records
2. HDFC Bank, Hyderabad Branch for information

Note: This notice is sent via Registered Post with Acknowledgement Due and via Email.